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April 22, 2025

ENGROSSED HOUSE
BILL NO. 1990

By: Turner and George of the
House

and

Weaver of the Senate

An Act relating to firearms; amending 21 O.S. 2021, Section 1283, as amended by Section 1, Chapter 299, O.S.L. 2022 (21 O.S. Supp. 2024, Section 1283), which relates to carrying firearms by convicted felons and delinquents; defining term; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1283, as amended by Section 1, Chapter 299, O.S.L. 2022 (21 O.S. Supp. 2024, Section 1283), is amended to read as follows:

Section 1283.

CONVICTED FELONS AND DELINQUENTS

A. Except as provided in subsection B of this section, it shall be unlawful for any person convicted of any felony in any court of this state or of another state or of the United States to have in his or her possession or under his or her immediate control, or in any vehicle which the person is operating, or at the residence where

1 the convicted person resides, any pistol, imitation or homemade
2 pistol, altered air or toy pistol, machine gun, sawed-off shotgun or
3 sawed-off rifle, or any other firearm.

4 B. Any person who has previously been convicted of a nonviolent
5 felony in any court of this state or of another state or of the
6 United States, and who has received a full and complete pardon from
7 the proper authority and has not been convicted of any other felony
8 offense which has not been pardoned, shall have restored the right
9 to possess any firearm or other weapon prohibited by subsection A of
10 this section, the right to apply for and carry a handgun, concealed
11 or unconcealed, pursuant to the provisions of the Oklahoma Self-
12 Defense Act or as otherwise permitted by law, and have the right to
13 perform the duties of a peace officer, gunsmith, and for firearms
14 repair.

15 C. It shall be unlawful for any person serving a term of
16 probation for any felony in any court of this state or of another
17 state or of the United States or under the jurisdiction of any
18 alternative court program to have in his or her possession or under
19 his or her immediate control, or at his or her residence, or in any
20 passenger vehicle which the person is operating, any pistol, shotgun
21 or rifle including any imitation or homemade pistol, altered air or
22 toy pistol, toy shotgun or toy rifle, while such person is subject
23 to supervision, probation, parole or inmate status.

1 D. It shall be unlawful for any person previously adjudicated
2 as a delinquent child or a youthful offender for the commission of
3 an offense, which would have constituted a felony offense if
4 committed by an adult, to have in the possession of the person or
5 under the immediate control of the person, or have in any vehicle
6 which he or she is driving, or at the residence of the person, any
7 pistol, imitation or homemade pistol, altered air or toy pistol,
8 machine gun, sawed-off shotgun or sawed-off rifle, or any other
9 dangerous or deadly firearm within ten (10) years after such
10 adjudication; provided, that nothing in this subsection shall be
11 construed to prohibit the placement of the person in a home with a
12 full-time duly appointed peace officer who is certified by the
13 Council on Law Enforcement Education and Training (CLEET) pursuant
14 to the provisions of Section 3311 of Title 70 of the Oklahoma
15 Statutes.

16 E. It shall be unlawful for any person who is an alien
17 illegally or unlawfully in the United States to have in the
18 possession of the person or under the immediate control of the
19 person, or in any vehicle the person is operating, or at the
20 residence where the person resides, any pistol, imitation or
21 homemade pistol, altered air or toy pistol, shotgun, rifle or any
22 other dangerous or deadly firearm; provided, that nothing in this
23 subsection applies to prohibit the transport or detention of the
24 person by law enforcement officers or federal immigration

1 authorities. Any person who violates the provisions of this
2 subsection shall, upon conviction, be guilty of a misdemeanor
3 punishable by a fine of Two Hundred Fifty Dollars (\$250.00).

4 F. Any person having been issued a handgun license pursuant to
5 the provisions of the Oklahoma Self-Defense Act and who knowingly or
6 intentionally allows a convicted felon or adjudicated delinquent or
7 a youthful offender as prohibited by the provisions of subsection A,
8 C, or D of this section to possess or have control of any firearm
9 authorized by the Oklahoma Self-Defense Act shall, upon conviction,
10 be guilty of a felony punishable by a fine not to exceed Five
11 Thousand Dollars (\$5,000.00). In addition, the person shall have
12 the handgun license revoked by the Oklahoma State Bureau of
13 Investigation after a hearing and determination that the person has
14 violated the provisions of this section.

15 G. Any convicted or adjudicated person violating the provisions
16 of this section shall, upon conviction, be guilty of a felony
17 punishable as provided in Section 1284 of this title.

18 H. For purposes of this section, ~~"sawed-off shotgun":~~

19 1. "Sawed-off shotgun" or "sawed-off rifle" shall mean any
20 shotgun or rifle which the barrel or barrels have been illegally
21 shortened in length-

22 ~~I. For purposes of this section, "altered toy pistol";~~
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24

1 2. "Altered toy pistol" shall mean any toy weapon which has
2 been altered from its original manufactured state to resemble a real
3 weapon.

4 ~~J. For purposes of this section, "altered air pistol";~~

5 3. "Altered air pistol" shall mean any air pistol manufactured
6 to propel projectiles by air pressure which has been altered from
7 its original manufactured state.

8 ~~K. For purposes of this section, "alternative court program";~~

9 4. "Alternative court program" shall mean any drug court, Anna
10 McBride or mental health court, DUI court or veterans court; and

11 5. "Imitation pistol" shall mean any pistol capable of raising
12 in the mind of the one threatened with such device a fear that it is
13 a real pistol.

14 SECTION 2. This act shall become effective November 1, 2025.

15 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
16 April 22, 2025 - DO PASS